

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

MATEUSZ MIDURA,

Plaintiff(s),

-against-

Index No.:

Basis of Venue: Plaintiff's residence

CITY OF NEW YORK, OFFICER ISLAM,
and JOHN DOE,

Defendant(s)

SUMMONS IN A CIVIL ACTION

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the Plaintiff/Plaintiff's Attorney(s) within twenty (20) days after service of this summons, exclusive of the day of service, where service is made upon you personally within the state, or within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
October 16, 2024

Yours etc.,

LAW OFFICE OF MICHAEL H. JOSEPH, P.L.L.C.

BY: 

John V. Tait
203 East Post Road
White Plains, New York 10601
(914) 574-8330
john@newyorktriallawyers.org

TO: City of New York
100 Church St
New York, NY 10007

Officer Islam (Tax Id number 974935)
NYPD
1 Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

MATEUSZ MIDURA,

Plaintiff(s),

-against-

Index No.:

VERIFIED COMPLAINT

CITY OF NEW YORK, OFFICER ISLAM,
and JOHN DOE,

Defendant(s)

JURY TRIAL DEMANDED

Plaintiff, by and through his undersigned attorneys, Law Office of Michael H. Joseph, PLLC, as for his complaint against Defendants states:

1. At all relevant times herein, plaintiff, Mateusz Midura was and is a resident of the State of New York, County of Kings.

2. At all relevant times herein, upon information and belief, Defendant Islam was and is a resident of the State of New York.

3. At all relevant times herein, the City of New York was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

4. On or about, August 28, 2024, and at all times relevant herein, Defendant Islam (Tax Id number 974935) and John Doe were a duly sworn police officers employed by the City of New York.

5. On or about August 28, 2024, and at all times relevant herein, Defendant Islam and John Doe were acting under the color of law and acting in the course and scope of their employment with the City of New York.

COUNT I: FALSE ARREST UNDER NEW YORK STATE LAW

6. Plaintiff repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length

7. On or about August 28, 2024, at approximately 11:25 p.m., Plaintiff was lawfully in 14th Street Subway Station.

8. At the aforesaid date, time, and place, Plaintiff had not committed any crime nor was there any reasonable suspicion to believe that Plaintiff had committed a crime.

9. At the aforementioned time, date, and place, Defendant unlawfully seized, searched, and falsely arrested Plaintiff for using a mobility scooter due to his disability.

10. Plaintiff was arrested and charged with a violation of NYCTA Rule § 1050.7 (k).

11. NYCTA Rule § 1050.7 (k)(4) provides: “Paragraph one of this subdivision does not apply to the proper use of self-propelled or motor propelled wheelchairs or similar assistive devices by a person requiring the use of such device due to a disability.”

12. At the aforementioned time, date, and place, there was no probable cause or reasonable suspicion to believe that Plaintiff committed the aforesaid crimes, in that Plaintiff was using an electric scooter due to his disability, including, *inter alia*, undergoing a discectomy on or about June 3, 2024.

13. Defendants arrested, confined and caused Plaintiff to be deprived of his freedom and liberty, all without a cause, excuse, or justification and without Plaintiff’s consent.

14. Defendant Party actions violated clearly established rights, including rights provided under the United States Constitution, Americans with Disabilities Act, New York State Human Rights Law, and the New York City Human Rights Law.

15. No reasonable officer in the position of Defendant Islam and John Doe would have believed the actions of the Defendants herein were objectively reasonable.

16. As a direct and proximate result of the foregoing acts committed by the Defendants, Plaintiff suffered severe emotional harm, great humiliation, ridicule, mental anguish, depression, mental shock, mental trauma, and pain and was caused to be deprived of his freedom.

17. The Defendants are jointly and severally liable to the harms caused to Plaintiff.

18. Within ninety days after the occurrence complained of herein, Plaintiff served a verified notice of claim upon the Party based on the facts contained herein; more than 30 days have elapsed since the service of such notice and the defendants have failed, neglected and refused to make adjustment or payment thereof; and, this action has been commenced within one year and ninety days after the happening of the events upon which these claims are based.

19. A statutory hearing has been waived and all prerequisites to suit have been fulfilled.

20. The City of New York is vicariously liable for the acts and omissions of Defendant Islam and John Doe for the acts complained of herein, all of which were committed in the course and scope of Defendant Islam's and John Doe's employment based upon respondeat superior.

21. The amounts sought herein exceed the jurisdictional limits of all courts of inferior jurisdiction.

COUNT II: FALSE ARREST UNDER 42 U.S.C. § 1983

22. Plaintiff repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length.

23. By making the aforesaid arrest of the Plaintiff, without probable cause, justification and privilege, Defendants' actions violated the Plaintiff's civil rights, including but not limited to his rights under the Fourth, Eighth, and Ninth Amendments of the United States Constitution, including but not limited to, the right not to be unreasonably seized and searched, as well as his right to personal liberty.

24. As a direct and proximate result of the foregoing acts committed by the Defendants, Plaintiff suffered severe emotional harm, great humiliation, ridicule, mental anguish, depression, mental shock, mental trauma, and pain and was caused to be deprived of the rights and immunities guaranteed by the United States Constitution, as well as the constitution of the State of New York.

25. Defendants are liable to Plaintiff pursuant to 42 U.S.C. § 1983.

COUNT III: CUSTOM, POLICY, AND MONNELL LIABILITY

26. Plaintiff repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length.

27. At all times relevant herein, the City of New York had a custom, policy, and practice of improper hiring, training, and supervision, allowing and permitting constitutional violations, tacitly permitting the abuse of detainees by officers, and failing to discipline officers so that that such deficiencies were likely to cause a violation of civil rights.

28. Defendant Islam and John Doe acted in accordance with the aforementioned custom, policy, and practice, in their arrest of the Plaintiff thereby allowing improper conduct to occur and failing to prevent the occurrences described herein.

29. The aforementioned customs, policies, and practices, proximately caused the constitutional violations against Plaintiff and the aforementioned harms and injuries to Plaintiff.

30. Defendants are jointly and severally liable.

COUNT IV: ATTORNEYS FEES AND COSTS UNDER 42 U.S.C. § 1988

31. Plaintiff repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length.

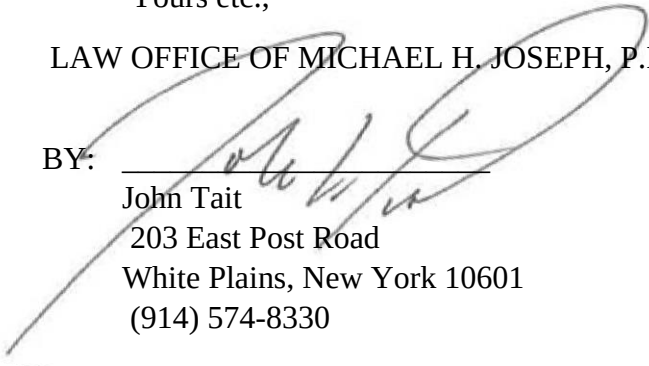
32. The foregoing events constitute violations of Plaintiff's statutory and constitutional rights, thereby entitling him to attorneys' fees, costs and disbursements as permitted by 42 U.S.C. § 1988.

WHEREFORE, Plaintiff demands that judgment be entered for Plaintiff against Defendants in an amount to be determined by the trier of fact for compensatory and punitive damages, plus attorney's fees, interest, costs and disbursements, along with whatever further relief the Court deems just and proper.

Dated: White Plains, N.Y.
October 16, 2024

Yours etc.,

LAW OFFICE OF MICHAEL H. JOSEPH, P.L.L.C.

BY: 

John Tait
203 East Post Road
White Plains, New York 10601
(914) 574-8330

SUPREME COURT OF THE STATE OF NEW YORK
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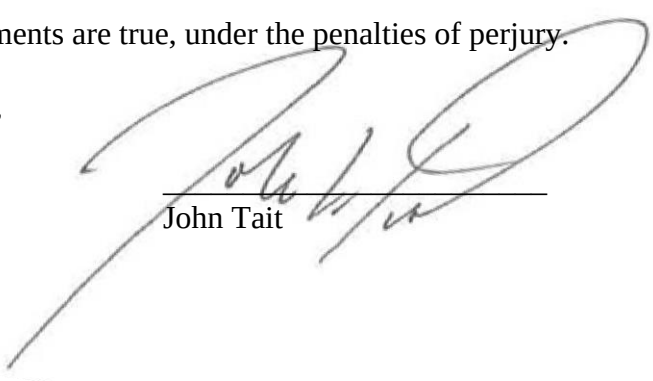
VERIFICATION

I, John V. Tait, the undersigned, an attorney admitted to practice in the State of New York, state that I am of the LAW OFFICE OF MICHAEL H. JOSEPH, P.L.L.C. attorneys of records for Plaintiff in the within action; I have read the foregoing VERIFIED COMPLAINT and know the contents thereof; the same are true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matter I believe them to be true. The reason this verification is made by me and not by Plaintiff is because the Plaintiff currently is not in the county in which my office is located.

The grounds of my belief as to all matters not stated upon my own knowledge are the reports, records, memoranda in my file together with my own investigation.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York,
October 16, 2024



John Tait